

TENTATIVE RULINGS FOR July 15, 2026
Department R-14
BEFORE THE HONORABLE TONY RAPHAEL
(909) 285-3717

ATTENTION: Commencing December 10, 2022, the Court will no longer regularly provide an official Court Reporter to transcribe proceedings in this Department. Parties who wish to have an official record of the proceedings in addition to a minute order must retain a private Certified Shorthand Reporter for the hearing and must submit a “Stipulation and Order For Appointment of Official Reporter Pro Tempore” to the court in the form found on the Court’s website. If counsel are appearing for the hearing remotely, the Stipulation can be emailed to the Judicial Assistant for Department R-14 at SScott@sb-court.org. The Court may sign the Order appointing the Certified Shorthand Reporter as the official Court Reporter Pro Tempore. Parties who do not retain a Certified Shorthand Reporter to be designated as an official Court Reporter Pro Tempore are deemed to have waived an official Court Reporter for the proceeding.

PLEASE REFER TO THE GENERAL ORDERS AND FORMS POSTED ON THE COURT’S WEBSITE.

PLEASE NOTE: There may be multiple tentative rulings so view the entire document.

This Court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings are posted on the court’s website after 3:00 p.m. the day before the hearing at <https://www.sb-court.org/divisions/civil/civil-tentative-rulings>.

You may appear in person or by remote appearance at the hearing. (See www.sb-court.org/general-information/remote-access) If you do not have Internet access you may obtain the tentative ruling by calling the department at 909-285-3717. If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 p.m. the day before and your appearance may be excused unless the Court orders you to appear.

You must appear at the hearing if you are so directed by the court in the tentative ruling and be prepared to address those issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF RULING

BYNUM EUGENE GABRIEL, et al.

v.

MARTHA GUEVARA SIU

CIVRS2400547

Procedural/Factual Background

This action arises from a motor vehicle accident that occurred on August 21, 2022.

On August 12, 2024, Plaintiffs Bynum Eugene Gabriel and Gabriella Romero filed a judicial council form complaint against Defendants Guevara Siu, Tania Siu, Uber Technologies, Inc. (dismissed 5/26/2026), Rasier-Ca, LLC (dismissed 5/26/2026), and Rasier LLC (dismissed 5/26/2026) alleging causes of action for: (1) motor vehicle; and (2) general negligence.

Now before the Court is Defendants Martha Guevara Siu and Tania Siu's motion to enforce settlement under Code of Civil Procedure section 664.6, arguing that Plaintiffs' lawsuit should never have been filed because on December 19, 2023, Romero signed a full release of her claims against Martha and Tanis in exchange for the payment of \$50,000 (Kandarian-Stein Decl. Exh. A), and that on February 13, 2024, Gabriel signed a full release of his claims against Marta and Tanis also in exchange for the payment of \$50,000 (Kandarian-Stein Decl. Exh. B).¹

¹No disrespect is intended by use of Defendants' first names which are used to avoid confusion because of their shared surname.

Plaintiffs oppose Defendants' motion arguing that the motion was never appropriate and is no longer necessary because Plaintiffs have agreed to dismiss this action so that they can proceed with their underinsured motorist claim. Defendants reply.

Although stating that they are prepared to dismiss the entire action, Plaintiffs have not yet done so. On May 26, 2026, Plaintiffs dismissed, with prejudice, Defendants Uber Technologies, Inc., Raiser-CA, LLC, and Raiser, LLC, but Plaintiffs have not filed dismissals for Martha and Tania.

For the reasons stated below, the Court denies Defendants' motion.

DISCUSSION

Legal Standard

Under Code of Civil Procedure section 664.6, subdivision (a), provides in relevant part: "If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement." The signed writing is valid if signed by the party, an attorney who represents the party, or, if the party is an insurer, an agent who is authorized in writing to sign on the insurer's behalf. (Code of Civ. Proc., § 664.6, subd. (b).)

Section 664.6 provides for a summary procedure to enforce a settlement agreement by entering judgment under the terms of the settlement. (*Hines v. Lukes* (2008) 167 Cal.App.4th 1174, 1182 (*Hines*).) The Court must determine whether the parties entered into a valid and binding settlement. (*Hines, supra*, 167 Cal.App.4th at p. 1182.) This inquiry includes (i) determining that all material settlement terms are defined, (ii) the parties understand those terms, and (iii) the parties expressly acknowledge their understanding and agreement to be bound by those

terms. (*In re Marriage of Assemi* (1994) 7 Cal.4th 896, 911.) In determining these factors, the Court can consider the parties' declarations, other evidence, and oral testimony. (*Hines, supra*, 167 Cal.App.4th at p. 1182; *Corkland v. Boscoe* (1984) 156 Cal.App.3d 989, 994.) The Court acts as the trier of fact. (*Kohn v. Jaymar-Ruby, Inc.* (1994) 23 Cal.App.4th 1530, 1533; *Skulnick v. Roberts Express, Inc.* (1992) 2 Cal.App.4th 884, 889.) Upon finding an enforceable and binding settlement was reached, the court should grant the motion and enter a formal judgment under the terms of the settlement. (*Hines, supra*, 167 Cal.App.4th pp. 1182-83.)

In ruling on a motion to enforce settlement, the court necessarily has the power to resolve factual disputes relating to the agreement. (*Osumi v. Sutton* (2007) 151 Cal.App.4th 1355, 1357.) Although a judge hearing a motion to enforce settlement may receive evidence, determine disputed facts, and enter the terms of a settlement agreement as a judgment, the judge is not authorized to create the material terms of a settlement, as opposed to deciding what terms the parties themselves have previously agreed upon. (*Id.* at 1360.)

Analysis

Defendants' motion must be denied because the summary procedure of Code of Civil Procedure section 664.4 is unavailable to enforce their pre-litigation settlements. (*Kirby v. Southern Cal. Edison Co.* (2000) 78 Cal.App.4th 840, 845.)

In *Kirby*, the specific question before the Court was whether "the summary procedures of section 664.6 apply to the enforcement of a settlement agreement made at a time when no litigation was pending?" (*Id.* at p. 844.) The Court answered in the negative holding that the "clear and unambiguous" language of the statute limits its reach to "settlement agreements entered into while litigation between the parties is pending." (*Id.* at p. 845.) The Court reasoned that to the extent a party wishes to enforce the terms of a pre-litigation release in a subsequent matter, the party must

establish the enforceability of the agreement by motion for summary judgment or by litigating the factual issues at trial. (*Id.* at p. 846.)

Defendants' releases were signed by Plaintiffs on December 19, 2023, and February 13, 2024, before Plaintiffs initiated this lawsuit on August 12, 2024. As a result, these agreements cannot be enforced under Code of Civil Procedure section 664.4.

Based on the foregoing, the Court denies Defendants' motion.

CONCLUSION

Based on the foregoing, the Court DENIES Defendants Martha Guevara Siu and Tania Siu's motion to enforce settlement as Code of Civil Procedure section 664.4 does not apply to the settlement agreements at issue.

However, given the Plaintiffs' assertion that the parties have agreed to settle Plaintiffs' claims and that Plaintiffs are prepared to dismiss the action, the Court will discuss with the parties at the hearing on July 15, 2026 whether Plaintiffs will dismiss the entire action with prejudice.

Plaintiffs' counsel is ordered to provide notice.